UNITED STATES COURT OF APPEALS

FOR THE SECOND CIRCUIT

Nos. 331, 857—August Term, 1996

(Argued November 20, 1996 Decided June 13, 1997)

Docket Nos. 96-7447, 96-7619

TSUI YUAN TSENG,

Plaintiff-Appellant-Cross-Appellee,

—v.—

EL AL ISRAEL AIRLINES, LTD.,

Defendant-Appellee-Cross-Appellant.

Before:

NEWMAN, *Chief Judge,*
CARDAMONE and ALTIMARI, *Circuit Judges.*

Appeal from a judgment entered in the United States District Court for the Southern District of New York (Stanton, J.), following a bench trial, finding in favor of plaintiff on her claim of property damage and awarding

her $1,034.90, but dismissing plaintiff's claims for personal injury for failure to establish an injury cognizable under Article 17 of the Warsaw Convention.

Affirmed in part, reversed in part, and remanded.

ROBERT H. SILK, New York, New York (Silk, Bunks, & Suckle, P.C., New York, New York, of counsel), *for Plaintiff-Appellant*.

DIANE WESTWOOD WILSON, New York, New York (Debra A. Shields, Condon & Forsyth, New York, New York, of counsel), *for Defendant-Appellee*.

CARDAMONE, *Circuit Judge*:

We have two issues to resolve on this appeal. One relates to the meaning of the term "accident" under Article 17 of the Warsaw Convention. The second, and by far more elusive, is whether a plaintiff denied a remedy for alleged injuries under the Convention because it does not apply may then pursue a claim for the same injuries in state court. The Supreme Court has not answered this question, and our search for the correct answer is somewhat reminiscent of Sir Galahad's search for the "Holy Grail." But unlike that Crusader who, pressing on, left the plain and climbed the height,[1] we must toil in the

[1] So pass I hostel, hall, and grange;
By bridge and ford, by park and pale,

valley, examining the Convention's language, its drafting history, decisional law and the thoughts of scholarly commentators.

Plaintiff Tsui Yuan Tseng (plaintiff or appellant) appeals from a judgment entered in the United States District Court for the Southern District of New York (Stanton, J.) that awarded her $1,034.90 for damages against defendant El Al Israel Airlines, Ltd. (El Al) for loss of her baggage, but dismissed her personal injury claim against the same defendant for failure to establish a cognizable injury.

Tseng alleged that El Al caused her to suffer personal injuries when it subjected her to a security search prior to her boarding an El Al flight from New York to Tel Aviv, Israel, and that the airline damaged and/or lost some of her personal belongings while searching her luggage. The district court ruled that the carrier's conduct constituted an "accident," giving rise to liability under Article 17 of the Warsaw Convention,[2] but that Tseng was barred from recovery because the only injuries she alleged were psychological and emotional, not physical.

BACKGROUND

Tseng, a New York resident employed by Beth Israel Medical Center, went on May 22, 1993 to John F.

All-arm'd I ride, whate'er betide,
Until I find the Holy Grail.

Alfred Lord Tennyson, *Sir Galahad*, *in* The Poetic and Dramatic Works of Alfred Lord Tennyson 101, 101 (W.J. Rolfe ed., Cambridge ed. Houghton, Mifflin & Co. 1898).

[2] Convention for Unification of Certain Rules Relating to International Transportation by Air, *concluded* Oct. 12, 1929, 49 Stat. 3000, T.S. No. 876 (1934), *reprinted in* 49 U.S.C. § 40105 note.

Kennedy International Airport in New York where she was scheduled to take El Al Flight LY-008 to Tel Aviv. Upon arrival, she proceeded to El Al's terminal, presented her ticket and U.S. passport to an El Al security guard, entered the terminal building and proceeded to a security area, where she was asked routine questions regarding her destination. Based upon her responses, which the security guard considered illogical—no explanation of why they were considered so is in the record—Tseng was classified as a "high risk" passenger.

Pursuant to the airline's security procedures, plaintiff was taken to a private room where she was subjected to a security search for explosives or detonating devices. The term "security search" refers to an intrusive search of a passenger's body initiated after a routine check by metal detector and questioning have led airline personnel to deem a passenger a security risk. Tseng was told to remove her shoes, jacket and sweater, and then instructed to lower her blue jeans to mid-hip level. A female security guard proceeded to search Tseng's entire body manually, including her breasts and groin area. The search, conducted outside Tseng's clothing, lasted 15 minutes. Security guards also searched Tseng's baggage. The security search of Tseng and her baggage conformed to El Al procedures, which had been adopted pursuant to Federal Aviation Administration regulations.

Following the search, El Al decided that Tseng did not present a security risk after all and she was permitted to board her flight. Plaintiff testified that, as a result of defendant's search, she "was really sick and very upset" during the course of the flight, and "emotionally traumatized and disturbed" throughout her month-long trip to Israel and thereafter. Subsequently, she underwent medical and psychiatric treatment; but, at no time did

Tseng claim she suffered any physical injury as a result of the bodily search.

During the flight plaintiff was unable to locate several personal items she had in her carry-on bag, and, upon arriving in Tel Aviv, she was missing, among other things, $1000 in cash and a diamond Rolex watch. Tseng did not inquire about the lost items during her flight or upon landing in Tel Aviv. However, while at the Tel Aviv airport she did inquire about her camera, which had been confiscated at JFK to be X-rayed. When plaintiff arrived at her hotel, she telephoned the airline's Tel Aviv office to inquire about the camera and the other missing items. She testified that an El Al representative informed her that she must take care of the matter in New York, and that the airline was "not interested in [her] missing items." On July 1, 1993, having returned from her trip, Tseng provided written notice to El Al's New York office that several items that accompanied her to the El Al Terminal for departure on her trip were either missing or damaged.

Since she did not obtain a satisfactory response, plaintiff initiated the action giving rise to this appeal by filing a complaint in May 1994 in the New York State Supreme Court for New York County. The complaint alleged a state law personal injury claim arising from the assault and false imprisonment; it also asserted a property claim relating to her lost and/or damaged property. El Al removed the case to federal court pursuant to 28 U.S.C. § 1441(d), because El Al is a "foreign state" within the meaning of 28 U.S.C. § 1603(a), which provides that "[a] 'foreign state' . . . includes a political subdivision of a foreign state or an agency or instrumentality of a foreign state."

In federal court, El Al argued that plaintiff's action was governed by the Warsaw Convention. The district court agreed, ruling it applicable because the airline's search of plaintiff constituted an "accident" within the meaning of Article 17. In applying the Convention, the trial court found the carrier liable under Article 18 for the loss and damage to Tseng's carry-on and checked baggage, and awarded her $1,034.90. The property loss award was calculated under Articles 22(2) and (3) of the Convention, which limit recovery for checked baggage to 250 francs per kilogram of baggage, and limit recovery for carry-on baggage to 5000 francs per person. These amounts have been converted to $20 per kilogram, or $9.07 per pound, for checked baggage and $400 per passenger for carry-on luggage. *See* 14 C.F.R. § 221.176(a); Warsaw Convention Liability Limitations, 39 Fed. Reg. 1526 (1974). Because the weight of Tseng's baggage could not be determined, the district court used the maximum weight allowed by El Al for checked baggage—70 pounds—to make its calculation. Tseng's personal injury claim was dismissed because she failed to show a physical injury as required by Article 17.

Plaintiff appeals the dismissal of her personal injury claim and El Al cross-appeals from the property damage award. We affirm, in part, and reverse, in part, and remand to the district court for further proceedings.

DISCUSSION

We are presented with two issues of considerable import. First, we must determine whether the security search of a passenger initially suspected of presenting a possible risk of terrorism but who is later determined not to present a danger constitutes an "accident" within the

meaning of Article 17 of the Warsaw Convention. Second, if the answer to the first question is "no," we must then determine whether the Convention provides the exclusive avenue for recovery of injuries sustained during international air travel even in cases where the terms of the Convention do not apply and it does not therefore subject the carrier to liability for damages.

Because there are a number of decisions setting forth the basic structure of the Convention—a comprehensive overview of it is set forth in *In re Air Disaster at Lockerbie, Scotland*, 928 F.2d 1267, 1270-71 (2d Cir. 1991) [*Lockerbie I*]—we discuss it only insofar as necessary to the resolution of the issues before us.

I Article 17

A. *Definition of "Accident"*

Tseng maintains it was error to dismiss her personal injury claims for want of a cognizable injury. The district court ruled that a security search of a passenger based upon suspicion of circumstances that turned out not to involve any danger constitutes an accident, subjecting the carrier to liability under Article 17. Carrier liability for personal injuries sustained by passengers engaged in international air travel is governed by Article 17 of the Convention, which states:

> The carrier shall be liable for damage sustained in the event of the death or wounding of a passenger or any other bodily injury suffered by a passenger, if the accident which caused the damage so sustained took place on board the aircraft or in the course of any of the operations of embarking or disembarking.

Article 17 applies where (1) an accident has occurred, in which (2) a passenger suffered death, wounding, or any other bodily injury, and (3) the accident occurred either on board the aircraft or in the course of embarking or disembarking from the plane. *See Eastern Airlines, Inc. v. Floyd*, 499 U.S. 530, 535-36 (1991). All three of these requirements must be met to invoke Article 17 liability. If a passenger satisfies the requirements for Article 17 liability, the amount of that liability was once limited to $75,000, *see In re Air Disaster at Lockerbie Scotland*, 37 F.3d 804, 812 (2d Cir. 1994), but 77 international carriers recently agreed to eliminate the $75,000 liability cap and impose strict liability up to 100,000 Special Drawing Rights (SDRs), roughly equivalent to $145,000, *see International Air Transport Association Intercarrier Agreement on Passenger Liability, approved by* D.O.T. Order 96-11-6, 1996 WL 656334 (D.O.T. Nov. 12, 1996). *See* DOT Approval Allows Liability Limits to be Abolished, Air Safety Wk., Nov. 18, 1996. However, a plaintiff may not recover for purely psychic injuries. *See Floyd*, 499 U.S. at 552.

Although the Convention does not define the term "accident," the Supreme Court describes it as "an unexpected or unusual event or happening that is external to the passenger." *Air France v. Saks*, 470 U.S. 392, 405 (1985). Yet "not every identifiable incident or occurrence during a flight is an accident within the meaning of Article 17 even if the incident or occurrence gives rise to an injury." *Quinn v. Canadian Airlines Int'l Ltd.*, No. 35558/91U, 1994 Ont. C. J. LEXIS 1695, at *10 (Ct. Just. May 30, 1994) (air turbulence not an accident); *see Pflug v. Egyptair Corp.*, 961 F.2d 26, 28-29 (2d Cir. 1992) (hijacking is an accident).

Thus, "accident" does not include those typical events that a passenger may be presumed to have accepted, that is to say, those injuries occurring in the normal operation of the aircraft or the airline are not injuries caused by "accidents" under Article 17. *See Saks*, 470 U.S. at 406; *Abramson v. Japan Airlines Co., Ltd.*, 739 F.2d 130, 133 (3d Cir. 1984); *Salerno v. Pan American World Airways, Inc.*, 606 F. Supp. 656, 657 (S.D.N.Y. 1985). Rather, it is only those unexpected "risks characteristic of air travel" that may occur during flight or in the course of embarking or disembarking and that are external to the passenger which may be called "accidents." *See Curley v. American Airlines, Inc.*, 846 F. Supp. 280, 283 (S.D.N.Y. 1994); *see also* Daniel Goedhuis, *National Airlegislations and the Warsaw Convention* 200-01 (1937). A "risk characteristic of air travel" is one that is to some extent unique to air travel, or to which carriage by air is peculiarly susceptible. *See Martinez Hernandez v. Air France*, 545 F.2d 279, 284 (1st Cir. 1976) ("[W]e think the risk of a random attack such as [a terrorist attack inside the baggage claim area] is not a risk characteristic of travel by aircraft, but rather is a risk of living in a world such as ours.").

At the time of the Convention's drafting, the delegates to the Warsaw conference understood "accident" to apply primarily to air disasters such as plane crashes. *See Day v. Trans World Airlines, Inc.*, 528 F.2d 31, 37-38 (2d Cir. 1975); *Second International Conference on Private Aeronautical Law: Minutes* 52 (Robert C. Horner & Didier Legrez trans., 1975) [hereinafter *Minutes*] ("[O]ne can classify aircraft accidents in three categories: those which arise out of errors of piloting; those which arise out of defect in the functioning of the aircraft[;] and those which are designated as being the

result of an Act of God, which is the majority of cases.").

"Since 1929, the risks of aviation have changed dramatically in ways unforeseeable by the Warsaw framers." *Day*, 528 F.2d at 37. As a result, courts regularly have viewed as "accidents" such events as terrorist attacks, *see, e.g., id.* at 37-38, hijacking, *see, e.g., Pflug*, 961 F.2d at 29; *Haddad v. La Compagnie Nationale Air France SA* [1981] E.C.C. 207 (CA Paris 1979), and bomb threats, *see, e.g., Margrave v. British Airways*, 643 F. Supp. 510, 512 (S.D.N.Y. 1986); *Salerno*, 606 F. Supp. at 657. On the other hand, the term has been held not to apply in instances such as death of a passenger by natural causes, *see, e.g., Walker v. Eastern Air Lines, Inc.*, 785 F. Supp. 1168, 1170 (S.D.N.Y. 1992), fights between passengers, *see, e.g., Price v. British Airways*, No. 91 Civ. 4947, 1992 WL 170679, at *3 (S.D.N.Y. July 7, 1992), routine repressurization of the aircraft, *see, e.g., Warshaw v. Trans World Airlines, Inc.*, 442 F. Supp. 400, 413 (E.D. Pa. 1977), or injuries resulting from intoxication, *see, e.g., Padilla v. Olympic Airways*, 765 F. Supp. 835, 838 (S.D.N.Y. 1991).

Given the near absolute liability now imposed by the Convention once an accident is found to have occurred, we invoke its provisions with some degree of care, reading its terms strictly and construing them narrowly. *See McCarthy v. Northwest Airlines, Inc.*, 56 F.3d 313, 316 (1st Cir. 1995) (Article 17 should be read parsimoniously because "there are sound policy reasons to confine . . . liability to the letter of the text, narrowly construed.").

B. *Security Search Not an "Accident"*

We turn now to consider whether the security search of Tseng was an accident under Article 17. Several reasons lead us to part from the district court, which thought it was. In the first place, being subjected to a personal search is a distasteful but common incident of international air travel. As such, it cannot be considered "unexpected" or "unusual," regardless of a passenger's subjective reaction to it. Or, as we just stated, not every incident occurring during a flight or in the process of embarking or disembarking is an "accident" within the meaning of Article 17. As one commentator explained:

> the passenger . . . is aware of the *typical events* related to an air carriage (turbulence, bad-weather, flashes of lightning onto the plane's hull, changes in cabin pressure, dry air in the cabin, so called 'air pockets', more or less 'hard' landings, etc.) and cannot realistically exclude the possibility of such occurrences happening on his flight, so he accepts them.

Elmar Giemulla et al., *Warsaw Convention* art. 17, para. 12 (Bernd Wickert-König trans., 1995).

Security clearance of one degree or another is part of every passenger's experience. And, a search of a passenger may not be said today to be an atypical event in international air travel. Each passenger must routinely submit to a metal detector and interrogation. Not infrequently, these initial procedures lead to additional measures, such as the use of a metal detecting wand or a security search. These events are an anticipated aspect of international travel. Whether appellant expected to be subjected to a security search is not a relevant consideration because she reasonably should have been aware that she might be.

A second reason that the subject search was not an "accident" is because it was part of the airline's normal procedure. Every air carrier is required by Federal Aviation Administration regulations to have in place security procedures to prevent terrorist attacks and to deny transport to anyone who does not consent to be searched upon request. *See* 14 C.F.R. § 129.25(b), (g)(1)-(2). As part of these security procedures, carriers are required to screen all passengers and baggage prior to boarding. *See* 49 U.S.C. § 44901(a) (requiring screening of passengers); 49 U.S.C. § 44906 (applying standards to foreign air carriers); 14 C.F.R. § 108.9(a). In accordance with these requirements, El Al conducts security searches of passengers daily. For example, in 1993 it conducted two to four security searches a day. Hence, as in *Saks*, this case appears simply to involve Tseng's personal reaction to the routine operating procedures of the defendant airline.

A further reason we cannot conclude that this incident was an "accident" within the terms of the Convention is because the Convention does not aim to derogate from the efforts of international air carriers to prevent violence and terrorism, efforts which are widely recognized and encouraged in the law. *See, e.g.*, 49 U.S.C. § 44901(a); 49 U.S.C. § 44906; *Day*, 528 F.2d at 34, 37 n.18 (recognizing the goal of accident prevention); 14 C.F.R. § 108.9(a) (screening utilized to "prevent or deter the carriage aboard airplanes of any explosive, incendiary, or a deadly or dangerous weapon").

Inherent in any effort to detect malefactors is the risk that innocent persons will be subjected to scrutiny and inconvenience. *Cf. Anderson v. Creighton*, 483 U.S. 635, 641 (1987) ("[I]t is inevitable that law enforcement officials will in some cases reasonably but mistakenly con-

clude that probable cause is present . . . ."). This is especially true in airports, where security personnel have only brief interaction with passengers, and must rely on such investigative tools as risk profiles, as was the case here, because there is insufficient time to conduct a more extensive investigation. The inconvenience and embarrassment to the individual passenger of being erroneously searched, therefore, is the price passengers pay for the degree of airline safety so far afforded them. To this end, courts have recognized that airport security officials are to some extent freed from the exacting requirements typically attached to governmental searches of individuals. *See, e.g., United States v. Bell*, 464 F.2d 667, 675 (2d Cir. 1972) (Friendly, C.J., concurring); *New York v. Waring*, 174 AD2d 16, 19 (App. Div. 2d Dep't), *appeal denied*, 79 NY2d 1009 (1992). To suppose the drafters of the Convention aimed to impose close to absolute liability on air carriers for searches that disclosed no danger seems to us highly unlikely.

Our final reason deals with appellant's misapprehension regarding two Articles of the Convention. Tseng appears to assert that El Al's conduct is "wilful misconduct" covered under Article 25 and therefore the carrier's actions cannot constitute an "accident" within the meaning of Article 17. Plaintiff's view is based upon a misunderstanding of the Convention. The two articles are not mutually exclusive; rather the finding of an "accident" under Article 17 is a prerequisite to the imposition of any liability for the personal injuries of a passenger. *See Saks*, 470 U.S. at 396; *MacDonald v. Air Canada*, 439 F.2d 1402, 1404 (1st Cir. 1971). Article 25 simply describes a subset of "accidents" that are more egregious and to which a greater degree of culpability attaches.

In sum, from the above authorities, we derive the following: a carrier is liable in damages for an accident on board the aircraft or in the course of embarking or disembarking that causes the death or wounding or any other bodily injury of a passenger. An "accident" is an unexpected or unusual event that is external to the passenger; but, "accident" does not include those typical occurrences that a passenger is presumed to accept as a characteristic risk of air travel. As a consequence, we hold that even though the event of which plaintiff complains occurred during the course of her embarkation on defendant's airplane, there was no accident and she suffered no bodily injury. Hence, under the terms of Article 17 of the Warsaw Convention, El Al may not be held liable in damages to her.

II The Exclusivity of the Convention

A. *State Cause of Action Lies When Convention Inapplicable*

Having ruled that the search of Tseng does not constitute an "accident," we now must determine whether the Convention provides the exclusive remedy for personal injuries sustained in the course of international air travel, such that Tseng is precluded from pursuing her state law claims for false imprisonment and battery. This is an issue the district court did not decide because it determined the Convention was applicable. The Supreme Court has twice declined to address the exclusivity of the Convention where its terms are *inapplicable*. *See Floyd*, 499 U.S. at 553; *Saks*, 470 U.S. at 408.

In *Lockerbie I* we stated in dictum that "a plaintiff plainly may institute" "a state cause of action when the claim does not arise under the Warsaw Convention." 928

F.2d at 1273. With the issue now squarely before us, we reaffirm that proposition and hold that state law claims are not precluded by the Warsaw Convention where the event or occurrence giving rise to the injury is found to be outside the Convention.

1. Convention's Text

Support for this view is found in the text of the treaty and in the context in which the words in it are used. *See Floyd*, 499 U.S. at 534 (noting that treaty interpretation should begin with the text), *Saks*, 470 U.S. at 396-97 (same); *see also* Vienna Convention on the Law of Treaties art. 31, *open for signature* May 23, 1969, U.N. Doc. A/CONF. 39/27 (1969), *reprinted in* 63 Am. J. Int'l L. 875, 885 (1969). The exclusivity provision of the Convention is found in Article 24, which provides:

> (1) In the cases covered by articles 18 and 19 any action for damages, however founded, can only be brought subject to the conditions and limits set out in this convention.
>
> (2) In the cases covered by article 17 the provisions of the preceding paragraph shall also apply, without prejudice to the questions as to who are the persons who have the right to bring suit and what are their respective rights.

The provision clearly states that resort to local law is precluded only where the incident is "covered" by Article 17, meaning where there has been an accident, either on the plane or in the course of embarking or disembarking, which led to death, wounding or other bodily injury, *see Floyd*, 499 U.S. at 535-36. To extend the scope of the Convention's exclusivity beyond that which it expressly provides would require rewriting Article 24

or Article 17, a task only the signatories to the Convention may undertake. *See Saks*, 470 U.S. at 406; *see also Brink's Ltd. v. South African Airways*, 93 F.3d 1022, 1027 (2d Cir. 1996) (the task of interpretation begins with the "literal language" of the treaty), *cert. denied*, 117 S. Ct. 959 (1997).

2. Drafting History

The plain meaning of Article 24 is also supported by reference to the drafting history, or *travaux preparatoires*, of the Convention. "[T]reaties are construed more liberally than private agreements, and to ascertain their meaning we may look beyond the written words to the history of the treaty, the negotiations, and the practical construction adopted by the parties." *Choctaw Nation of Indians v. United States*, 318 U.S. 423, 431-32 (1943); *see also* Vienna Convention, *supra*, art. 32, *reprinted in* 63 Am. J. Int'l L. at 885 (it is appropriate to use supplementary materials to "confirm the meaning resulting from" a contextual reading of the treaty's plain language).

The *travaux preparatoires* indicate that national law was intended to provide the passenger's remedy where the Convention did not expressly apply. During the conference, the Czechoslovakian delegation proposed an additional article that read: "In the absence of provisions in the present Convention, the provisions of laws and national rules relative to carriage in each State shall apply." *Minutes*, *supra*, at 176. The intent of the proposed article was set forth in its proviso: "Provided that the case which arises was not provided for in the Convention, it's the common law which is applicable." *Id.* However, the Czechoslovakian delegation was satisfied that its concern was addressed and withdrew its proposal

when the title of the Convention was amended to refer to the unification of "*certain rules*," thereby indicating "the special nature of the Convention." *Id.* (emphasis added); *see id.* at 188. Other delegates assumed it beyond question that the Convention was nonexclusive where it did not apply. For example, when asked what law would be applicable to cases excluded from the Convention under Article 34 (experimental trials exception), the French delegate exclaimed that "[n]aturally" the common law would apply. *Id.* at 85-86.

B. *Other Decisional Law and Scholarly Comment*

Moreover, a number of courts and commentators have concluded that the Convention provides the exclusive remedy only where its provisions expressly apply. *See, e.g., Schroeder v. Lufthansa German Airlines*, 875 F.2d 613, 618 (7th Cir. 1989) (court reached plaintiff's state law claims after determining that the Convention was not implicated); *Abramson*, 739 F.2d at 134 ("if [the Convention] does not apply, it leaves liability to be established according to traditional common law rules"); *Martinez Hernandez*, 545 F.2d at 284; *Tandon v. United Air Lines*, 926 F. Supp. 366, 370-71 (S.D.N.Y. 1996); *Beaudet v. British Airways, PLC*, 853 F. Supp. 1062, 1072 (N.D. Ill. 1994) (state law negligence claim not pre-empted where Convention is inapplicable); *Levy v. American Airlines*, No. 90 Civ. 7005, 1993 WL 205857, at *5 (S.D.N.Y. June 9, 1993), *aff'd*, 22 F.3d 1092 (2d Cir. 1994); *Walker*, 785 F. Supp. at 1173 (S.D.N.Y.); *Fischer v. Northwest Airlines, Inc.*, 623 F. Supp. 1064, 1066 (N.D. Ill. 1985) (denying motion to dismiss state law claims, but dismissing Convention claims); *Rolnick v. El Al Israel Airlines, Ltd.*, 551 F. Supp. 261, 264 (E.D.N.Y. 1982) (permitting pursuit of state law claim after finding

passenger's slip on escalator not to have been within the Convention); Giemulla et al., *supra*, *Warsaw Convention* art. 1, para. 35 ("Where the Convention is not applicable, national law will be applied."); Lawrence B. Goldhirsch, *The Warsaw Convention Annotated: A Legal Handbook* 62 (1988) ("Where there is no 'accident' the Warsaw Convention is probably inapplicable and the passenger may proceed to use local law to prove a claim."); René H. Mankiewicz, *The Liability Regime of the International Air Carrier: A Commentary on the Present Warsaw System* 2, 13 (1981); Luis F. Ras, *Warsaw's Wingspan Over State Laws: Towards a Streamlined System of Recovery*, 59 J. Air L. & Com. 587, 589 (1994). *But see Potter v. Delta Air Lines, Inc.*, 98 F.3d 881, 885 (5th Cir. 1996) ("The Convention's goals of uniformity and certainty would be frustrated were we to allow Mrs. Potter to assert her state law claims, even where the Convention does not provide her a remedy."); *Salazar v. Mexicana Airlines*, 20 Av. Cas. (CCH) ¶ 17,114, at ¶ 17,115 (W.D. Tex. 1986) (same); *Sidhu v. British Airways plc* [1997] 1 All E.R. 193, 207 (H.L. 1996) (U.K.) (same).

C. *Contrary Arguments Refuted*

Two arguments have been advanced in support of the proposition that the Convention is wholly exclusive. We reject both. The first is a structural argument advanced in Great Britain. *See Sidhu* [1997] 1 All E.R. at 205-07. In the view of the English courts, Article 17 is intended to provide exhaustively for the circumstances under which a carrier may be held liable. *See id.* at 207. According to the House of Lords, the purpose of Article 17 is "to prescribe the circumstances, that is to say the only circumstances, in which a carrier will be liable in damages to the passenger for claims arising out of his

international carriage by air." *Id.* Interpreted in this fashion, the English courts read Article 24's reference to "cases covered under article 17" to mean those cases within the Convention not covered by Articles 18 (baggage) and 19 (delay), rather than to distinguish between incidents of personal injury that are or are not within the provisions of the Convention. *See id.*

We recognize that a construction of the Convention by our sister signatories is "entitled to considerable weight," *Saks*, 470 U.S. at 404, but remain unpersuaded to follow the course laid out in *Sidhu*. For one thing, the Convention is not an exhaustive set of rules and guidelines dealing with international air travel, as is evident from its formal title. As one commentator explained, "the Convention was not intended to govern the entire relationship between air carriers and passengers . . . , and does not propose to unify all such rules." Ras, *Warsaw's Wingspan*, *supra*, at 589; *see* Mankiewicz, *The Liability Regime*, *supra*, at 13, 91.

For another, neither the text nor the *travaux preparatoires* reveal an aim to provide in an exhaustive way for the liability of the carrier for all personal injuries. It is widely accepted that one of the two primary purposes of the Convention was to shield carriers from financial catastrophe following in the wake of a major accident. *See MacDonald v. Air Canada*, 439 F.2d at 1405; Andreas F. Lowenfeld & Allan I. Mendelsohn, *The United States and the Warsaw Convention*, 80 Harv. L. Rev. 497, 499 (1967). To that end, the Convention limits airline liability for accidents. But the Convention does not purport to insulate carriers from the ordinary risks of doing business, such as keeping their facilities in good repair. An injury to a passenger caused, for example, by a failure of a carrier to keep its walkways in

a safe condition is hardly the type of catastrophic incident that would likely force even a fledgling airline out of business, and cannot be assumed to have been within the contemplation of the drafters of the Convention.

Given the self-described limitation of the Convention, it seems illogical to extend its scope beyond that for which it explicitly provides.[3] It is not tenable to believe the Convention meant to address the more ordinary type of personal injury without some express statement in the text to that effect. Such reading would lead to the absurd result of allowing carriers to escape liability for their negligence—or even their intentional torts—so long as the event giving rise to the injury was not an accident occurring on an airplane or in the course of embarking or disembarking as narrowly circumscribed by the definition of Article 17's meaning.

For example, it is generally accepted that a passenger injured while riding an escalator in the airline terminal does not have recourse under Article 17. *See, e.g., McCarthy*, 56 F.3d at 317 (passenger's slip on escalator not in the course of embarking or disembarking); *Abu Hamdeh v. American Airlines, Inc.*, 862 F. Supp. 243,

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[3] The intention of the drafters appears perfectly plain: gaps left in the regulation of international air carriage would be filled in by subsequent agreements. This point was made in a request by the French delegation to the conference:

> Considering that the Warsaw Convention provides only for certain difficulties relating to air carriage and that international air navigation raises many other questions that it would be desirable to provide for by international agreements,
>
> Expresses the wish:
>
> That, through the offices of the French Government, which has taken the initiative of the convening of these conferences, that there be convened subsequently, new conferences which will pursue the work of unification.

Minutes, supra, at 182.

247-48 (E.D. Mo. 1994) (same); *Rolnick*, 551 F. Supp. at 264 (same). Were we to read Article 17 to provide the exclusive remedy for personal injury, a carrier would not be liable for injuries caused by the malfunctioning of an escalator, notwithstanding the fact that it may have recklessly disregarded its duty to keep it in proper repair. Beyond the inequity of forcing the passenger to bear the cost of an airline's negligence, safeguarding an airline from this sort of liability removes the incentive for it to maintain its premises properly—an important goal of domestic tort law. *See* W. Page Keeton et al., *Prosser and Keeton on the Law of Torts* § 4, at 25 (5th ed. 1984) ("When the decisions of the courts become known, and defendants realize that they may be held liable, there is of course a strong incentive to prevent the occurrence of the harm."); *cf. Day*, 528 F.2d at 34 (airlines are in better position to assess risks and prevent accidents).

The second argument advanced in support of holding the Convention wholly exclusive is that permitting state law claims under any circumstances contravenes the Convention's goal of uniformity. *See Potter*, 98 F.3d at 885. This argument is flawed in two respects. First, while uniformity is certainly one of the two primary goals of the Convention, such a goal has not always been found feasible in all areas of international travel. Second, even where possible, uniformity cannot justify altering the operating structure of the Convention. *See Zicherman*, 116 S. Ct. at 636 (rejecting application of general maritime law to all Convention cases regardless of whether maritime law would naturally apply). We have read *Zicherman* to instruct specifically that the Convention expresses no compelling interest in uniformity that would warrant us in supplanting an otherwise applicable body of law, here state law. *See Pescatore v.*

Pan American World Airways, Inc., 97 F.3d 1, 11 (2d Cir. 1996). Even to accept the argument that uniformity should prevail where the Convention does not apply does not support the ultimate proposition that the Convention must therefore provide the exclusive remedy, because uniformity could be achieved equally as well by allowing recovery outside the Convention, under a uniform body of law. Of course, once the Convention is ruled inapplicable the carrier may, in a liability suit against it under domestic law, interpose all the defenses available to it under that law.

D. *Passengers' Interests*

Finally, excluding state law claims where the Convention does not apply is inconsistent with the Convention's goal of protecting passengers. Underlying the desire for uniformity and limited liability for the carrier was a desire to balance the interests of the passenger and the carrier. *See Lockerbie I*, 928 F.2d at 1271. In return for certainty and limited liability, the carriers accepted presumed fault when the Convention applied, so that passengers or their survivors could obtain recovery in situations where it might be difficult to prove a carrier's negligence. *See id.*

Over the past several decades, international air transportation has transformed from a fragile, fledgling industry into one that is well established and financially secure. In recognition of the increasing strength of the airline industry, the balance has properly shifted away from protecting the carrier and toward protecting the passenger, *see Day*, 528 F.2d at 37, evidenced by the recent intercarrier agreement abandoning the Convention's liability cap and imposing strict liability up to $145,000.

Reading the Convention to preclude recovery for injuries sustained outside the scope of the Convention would undermine the notion of balancing the interests of the carrier and the passenger. Under such a scheme, the carrier would be disproportionately favored by being absolved from liability for its tortious conduct, except under certain limited circumstances. The passenger would be forced to bear the cost of injury, despite the airline being in a better position to distribute the costs of such injuries and to prevent them from occurring. *See* Keeton, *Law of Torts*, *supra*, § 4, at 24 (Tort law tends to place the burden on the corporation, "who by means of rates, prices, taxes or insurance are best able to distribute" risks and losses.). It is highly doubtful that such a skewing of interests was in the contemplation of the original drafters of the Convention, and such an interpretation is clearly at odds with the current goals of the Convention. Consequently, we hold that where the Convention is inapplicable, a plaintiff may seek recourse under state law.

CONCLUSION

We have reviewed El Al's cross-appeal concerning the district court's findings and conclusions embodied in its judgment regarding Tseng's baggage claim and find it to be without merit. Accordingly, the judgment is reversed with respect to Tseng's personal injury claim and affirmed with respect to her baggage claim. Plaintiff's personal injury cause of action is remanded to the district court, which, should it determine it proper to exercise pendent jurisdiction, may then resolve Tseng's outstanding state law claims in accordance with this opinion.

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

94 Civ. 3385 (LLS)

TSUI YUAN TSENG,

Plaintiff,

—against—

EL AL ISRAEL AIRLINES, LTD.,

Defendant.

MEMORANDUM AND ORDER

Plaintiff Tsui Yuan Tseng claims defendant El Al Israel Airlines, Ltd. ("El Al"), which searched her person and bags as she was boarding a flight, subjected her to assault, false imprisonment, physical and mental abuse and humiliation, and the loss of and damage to her property.

The case was tried to the court on March 7, 8, and 11, 1996. From my observation of the witnesses and exhibits, I find the preponderance of the credible evidence establishes the following facts. All Agreed Findings in the Consent Pretrial Order are found as facts, and are supplemented by the findings below.

FACTS

On May 22, 1993, Ms. Tseng went to El Al's terminal at John F. Kennedy International Airport in Queens, New York to take a flight to Tel Aviv. While awaiting check-in she was queried about her reasons for the trip, asked to wait, and then

taken to a small room with a few chairs and a table, where she was searched.

At the instruction of a uniformed man and woman, she put her luggage (a suitcase, a carry-on bag and her purse) on the table and unlocked it. The man and woman took out the contents of her luggage and put her things into small baskets, which they took into another room into which she was not allowed to follow.

The woman then told Ms. Tseng to take off her jacket, sweater, shoes, and belt, and to loosen and lower her blue jeans to just below her hip. The woman proceeded to search her, first by feeling her body by hand outside her clothes from head to toe, and then with an electronic security wand.

After an hour or so, they stuffed her things messily back into her luggage. She was then escorted to her plane. They told her to leave her suitcase there, and that it would be put on the plane.

During the flight, she felt sick, upset, and nervous, and had a headache. She glanced a few times in her carry-on bag, but its contents were so disorganized that she could not find anything.

At her hotel in Tel Aviv, she opened her suitcase, carry-on bag, and purse. She sorted through the messy contents and discovered that many of her clothes were stained and damaged, and that several items were missing, including a Rolex watch, a jade ring, some of her clothes, and a thousand dollars in cash. She called El Al's office in Tel Aviv, and was told that they could not do anything about the losses in Israel and to wait until she was back in the United States and then report them.

She returned to the United States on or about June 20, 1994. Around the end of June, she went to see her doctor for treatment of headaches, upset stomach, ringing in her ears, nervousness and sleeplessness, all of which had bothered her since she was searched. She also brought to El Al, in person, a letter dated July 1, 1994, complaining about her search and detention and listing the items that were missing and damaged.

El Al claims she was searched because her reasons for her trip appeared "illogical," but it is unable (for lack of memory and records) to specify how. It urges, and I accept, that the actual method of search of her person conformed to their usual practice.

DISCUSSION

A. BODILY INJURY

The parties dispute whether the Warsaw Convention applies to plaintiff's claims that she suffered injury as a result of her detention and search by El Al. In particular, they dispute whether her claimed injuries resulted from an "accident" within the meaning of Article 17 of the Convention, which states:

> The carrier shall be liable for damage sustained in the event of the death or wounding of a passenger or any other bodily injury suffered by a passenger, if the accident which caused the damage so sustained took place on board the aircraft or in the course of any of the operations of embarking or disembarking.

Air France v. Saks, 470 U.S. 392, 105 S. Ct. 1338 (1985), dealt with the definition of "accident" in Article 17. The Supreme Court concluded that "liability under Article 17 of the Warsaw Convention arises only if a passenger's injury is caused by an unexpected or unusual event or happening that is external to the passenger," and stated further that "This definition should be flexibly applied after assessment of all the circumstances surrounding a passenger's injuries." 470 U.S. at 405, 105 S. Ct. at 1345. In *Shen v. Japan Airlines*, 1994 WL 167989 (S.D.N.Y.), *aff'd*, 43 F.3d 1459 (2d Cir. 1994), this court applied the Warsaw Convention to the detention, search, and confinement of passengers by Japan Airlines. *Id.* at *2.

Plaintiff argues that El Al's actions were not an "accident" but wilful misconduct, and therefore not covered by the Convention.

The record in this case does not support the proposition that the search of the plaintiff was wilful misconduct. The actual techniques for carrying out the search were those prescribed by El Al's procedures, and are reasonable in light of the need for discovering small dangerous objects, if the prospective passenger appears to pose a threat.

There is no evidence that the plaintiff actually posed such a threat, and there is no evidence explaining why she was selected to be searched. Although El Al's records state that her story was illogical, no reason is given why El Al personnel thought so.

It may have been a mistake. There may have appeared a basis for El Al's suspicions, although they ultimately proved groundless. However, there is no evidence and no basis for inferring that it was anything more than a mistake. Even if such a mistake can be characterized as misconduct, there is no basis for inferring that it was wilful. Accordingly, I find that it was not such wilful misconduct as might take the case outside the Convention's limitations of liability under Article 25.[1]

Occasional personal searches are recognized incidents of international air travel. The evidence shows that they occur two to four times a day at El Al alone, which averages over 1,000 times per year for that single airline.

Using the flexible application prescribed by the Supreme Court, such a routine search, applied erroneously to plaintiff in the course of embarking on the aircraft, is fairly accurately

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[1] The Convention, in Article 25(1), provides:

The carrier shall not be entitled to avail himself of the provisions of this convention which exclude or limit his liability, if the damage is caused by his wilful misconduct or by such default on his part as, in accordance with the law of the court to which the case is submitted, is considered to be equivalent to wilful misconduct.

characterized as an accident; that is to say, an unexpected or unusual event or happening external to the passenger.

Accordingly, the Warsaw Convention applies.

Under the Convention, the case is governed by *Eastern Airlines, Inc. v. Floyd*, 499 U.S. 530, 111 S. Ct. 1489 (1991), in which the Supreme Court squarely considered and squarely disallowed any recovery for psychic or psychosomatic injury unaccompanied by bodily injury. 499 U.S. at 552, 111 S. Ct. at 1502.

Here, the plaintiff sustained no bodily injury. Her body was not injured by the woman who searched her by feeling the surface of her body outside her clothing with her hands, and by using an electronic security wand to detect metal objects. On the contrary, all of her personal injuries are attributable to her shock and outrage at the way she was treated. Although her injuries may have had physical manifestations, those are the types of psychic or psychosomatic injuries barred by *Floyd* and not the "bodily injury" for which compensation is available under Article 17 of the Convention.

The Convention precludes recovery on such claims under state law. Article 24 of the Convention provides:

> (1) In the cases covered by articles 18 and 19 any action for damages, however founded, can only be brought subject to the conditions and limits set out in this convention.
>
> (2) In the cases covered by article 17 the provisions of the preceding paragraph shall also apply . . . .

See In re Air Disaster at Lockerbie, Scotland, 928 F.2d 1267 (2d Cir.) ("the Warsaw Convention preempts state law causes of action arising under it"), *cert. denied*, 502 U.S. 920, 112 S. Ct. 331 (1991).

Accordingly, Ms. Tseng's claims for personal injuries are dismissed.

B. BAGGAGE

The Convention also applies to plaintiff's claims for damages to her checked and carry-on luggage.

"With respect to checked baggage, Article 18 provides for the strict liability of carriers for loss or damage sustained while under the control of the carrier." *Republic National Bank of New York v. Eastern Airlines, Inc.*, 815 F.2d 232, 236 (2d Cir. 1987). Ms. Tseng's suitcase was under El Al's control when the items in her suitcase were lost and damaged, so El Al is liable for that damage and loss.

For claims of damage to carry-on baggage, the Convention imposes liability on the carrier if the damage is the result of an accident. *See Baker v. Lansdell Protective Agency, Inc.*, 590 F. Supp. 165, 167 (S.D.N.Y. 1984). The items in Ms. Tseng's carry-on baggage were lost and damaged as the result of the search, which was an accident, so El Al is liable for the damage to and loss of items in that carry-on baggage.

1. Notice

The parties dispute whether El Al escapes liability for the loss of and damage to items in plaintiff's baggage under the Convention's requirement that plaintiff give prompt notice to it of the loss.

Article 26 of the Convention provides, in pertinent part:

> (2) In case of damage, the person entitled to delivery must complain to the carrier forthwith after the discovery of the damage, and at the latest, within 3 days from the date of receipt in the case of baggage and 7 days from the date of receipt in the case of goods. . . .
>
> (3) Every complaint must be made in writing upon the document of transportation or by separate notice in writing dispatched within the times aforesaid.

Although Article 26 of the Convention on its face requires written notice to the carrier only when there is "damage" to

baggage, notice is also required when items in baggage are lost, because "delivery of a package or container with part of its contents missing is damage and requires notice." *Denby v. Seaboard World Airlines, Inc.*, 575 F. Supp. 1134, 1141 (E.D.N.Y. 1983), *rev'd on other grounds*, 737 F.2d 172 (2d Cir. 1984).

At the time of plaintiff's flight, El Al had extended the time for passengers to give written notice to the carrier from three days, as provided above in Article 26 of the Convention, to seven days, as provided by Rule 55(E)(1) of El Al's tariff, which provides in pertinent part:

> No action shall lie in the case of damage to baggage unless the person entitled to delivery complains to an office of carrier forthwith after the discovery of the damage, and at the latest, within seven (7) days from the date of receipt . . . .

That tariff was approved by the Civil Aeronautics Board, *see* International Passenger Rules and Fares Tariff, NTA (A) No. 324, ¶C.A.B. No. 530, Rule 55(E), and governs here. *See Tishman & Lipp, Inc. v. Delta Air Lines*, 413 F.2d 1401, 1403 (2d Cir. 1969) ("Tariffs filed with the Civil Aeronautics Board if valid, are conclusive and exclusive, and the rights and liabilities between airlines and their passengers are governed thereby").

Ms. Tseng submitted to El Al written notice of her damage in a letter dated July 1, 1993, which was 39 days after her flight to Tel Aviv. There is no evidence that she submitted written notice of the damage to El Al during the seven days after her flight.

Article 26(4) of the Convention provides

> Failing complaint within the times aforesaid, no action shall lie against the carrier, save in the case of fraud on his part.

Accordingly, Ms. Tseng's claims for damage to her baggage are barred by the notice requirement of Article 26, unless there is "fraud" on the part of El Al.

In *Denby v. Seaboard World Airlines, Inc.*, 737 F.2d 172 (2d Cir. 1984), the Second Circuit stated that the fraud exception " 'is not of a restrictive nature,' " but includes "any intentional acts by the carrier or its agents which significantly decrease the likelihood of the shipper's giving notice during the brief period allowed." 737 F.2d at 183 (quoting N. Matte, Treatise on Air-Aeronautical Law 425 (1981)).

Ms. Tseng, after discovering at her hotel that items in her baggage were damaged and missing, promptly made a telephone call to El Al. An agent of El Al told her that they could not do anything about it and that she should talk to them back in the United States. That statement by El Al "significantly decreased the likelihood" that she would give written notice of her damage to El Al during the brief period allowed. Accordingly, the fraud exception to the notice requirement applies in this case, and the notice requirement does not bar her claim for damage to her baggage.

2. Liability Limitations

Article 22(1) of the Convention limits the liability of a carrier for checked baggage "to a sum of 250 francs per kilogram", unless the passenger has made "a special declaration of value" of the baggage at the time it was delivered to the air carrier and "has paid a supplementary sum if the case so requires." By Order of the Civil Aeronautics Board this limit of liability has been converted to $20.00 per kilogram, or $9.07 per pound. *See* C.A.B. Order 74-1-16, 39 Fed. Reg. 1526 (1974).

There has been no evidence showing how much Ms. Tseng's suitcase weighed. Where the weight of a passenger's baggage is not noted on the baggage check, the weight may be based on the maximum allowable weight as set forth in the airline's tariff. *Republic National Bank v. Eastern Airlines*, 639

F. Supp. 1410, 1411 (S.D.N.Y. 1986), *aff'd*, 815 F.2d 232 (2d Cir. 1987).

At the time of Ms. Tseng's flight, Rule 115(Q) of El Al's tariff provided:

> (1) No article will be accepted for transportation if it exceeds the following maximum quantity/size/weight:
>
> (a) If the maximum outside linear dimensions exceed 80 inches or if the article weighs more than 70 pounds (32 kilograms).

That tariff was approved by the Civil Aeronautics Board. *See* International Passenger Rules and Fares Tariff, NTA (A) No. 324, ¶ C.A.B. No. 530, Rule 115(Q). Because the maximum weight of any article of baggage that Ms. Tseng could have checked with El Al is 70 pounds, El Al's liability for her checked suitcase is limited to $9.07 per pound times 70 pounds, which is $634.90.

The Convention, in Article 22(3), also limits El Al's liability for "objects of which the passenger takes charge himself"—that is, unchecked or carry-on luggage—to "a sum of 5,000 francs per passenger." Because the Civil Aeronautics Board has converted 250 francs to 20 dollars, *see* C.A.B. Order 74-1-16, 39 Fed. Reg. 1526 (1974), 5,000 francs is converted to 400 dollars.

Therefore, the Convention limits[2] El Al's liability for the damage sustained to the plaintiff's baggage to $634.90 for her checked baggage and $400.00 for her unchecked baggage. The evidence shows that the monetary value of the damage to and loss of items in her checked and unchecked baggage,

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[2] The evidence does not establish that the loss of and damage to the items in plaintiff's luggage constituted such willful misconduct as might take the case outside the Convention's limitations of liability under Article 25. *See Chukwuma v. Groupe Air France, Inc.*, 767 F. Supp. 43, 48 (S.D.N.Y. 1991) (to presume willful misconduct "solely on the basis of the fact that some of his luggage was lost or stolen" is "a presumption that would severely undercut Article 22's limitation of liability"), *aff'd*, 962 F.2d 2 (2d Cir. 1992).

respectively, exceeded those amounts. Accordingly, plaintiff is entitled to recover for the damage to her baggage in the amount of $1034.90.

CONCLUSION

Because the Warsaw Convention precludes recovery for emotional injury or for the physical manifestations of such injury, plaintiff's claims seeking such recovery are dismissed.

For her claims of damage to and loss of items in her baggage, plaintiff is entitled to damages in the amount of $1034.90, plus prejudgment interest according to law.

The Clerk is directed to enter judgment accordingly. So ordered.

Dated: New York, New York
March 13, 1996

LOUIS L. STANTON

LOUIS L. STANTON
U.S.D.J.

HOUSE OF LORDS

ON 12 DECEMBER 1996

ABNETT (KNOWN AS SYKES)

(APPELLANT)

—v.—

BRITISH AIRWAYS PLC

(RESPONDENTS) (SCOTLAND)

SIDHU AND OTHERS (A.P.)

(APPELLANTS)

—v.—

BRITISH AIRWAYS PLC

(RESPONDENTS)

Lord Browne-Wilkinson, Lord Jauncey of Tullichettle, Lord Mustill, Lord Steyn, Lord Hope of Craighead

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OPINIONS OF THE LORDS OF APPEAL FOR JUDGMENT IN THE CAUSE

LORD BROWNE-WILKINSON

My Lords,

For the reasons given in the speech to be delivered by my noble and learned friend, Lord Hope of Craighead, which I

have read in draft and with which I agree, I would dismiss both these appeals.

LORD JAUNCEY OF TULLICHEITLE

My Lords,

For the reasons given in the speech to be delivered by my noble and learned friend, Lord Hope of Craighead, which I have read in draft and with which I agree, I too would dismiss both these appeals.

LORD MUSTILL

My Lords,

For the reasons given in the speech to be delivered by my noble and learned friend, Lord Hope of Craighead, which I have read in draft and with which I agree, I too would dismiss both these appeals.

LORD STEYN

My Lords,

For the reasons given in the speech to be delivered by my noble and learned friend, Lord Hope of Craighead, which I have read in draft and with which I agree, I would dismiss both these appeals.

LORD HOPE OF CRAIGHEAD

My Lords,

The question in these two appeals is whether the Warsaw Convention as amended at The Hague, 1955, as set out in the Schedule 1 to the Carriage by Air Act 1961, provides the exclusive cause of action and sole remedy for a passenger who claims against the carrier for loss, injury and damage sustained in the course of, or arising out of, international carriage by air.

In both cases claims were made against the respondents, British Airways Plc., by passengers who had been travelling on a scheduled international flight from the United Kingdom to Malaysia via Kuwait. The flight left London Heathrow for

Kuala Lumpur on 1 August 1990. It landed in Kuwait for refuelling on 2 August 1990, about five hours after Iraqi forces had begun to invade Kuwait at the commencement of what became known as the Gulf War. The passengers and crew were all taken prisoner by the Iraqis. They were detained initially at Kuwait Airport, then at Kuwait City and thereafter in Baghdad. The appellants, who were subsequently released and returned to the United Kingdom, claimed damages against the respondents for the consequences of their captivity. Their claims for personal injury were made at common law, as it was accepted that they had no remedy in this regard under article 17 of the Convention.

Mrs. Judith Helen Abnett, to whom I shall refer as "the pursuer," raised her action in the Court of Session in Scotland. She was resident in England where the respondent's principal place of business is situated and she had purchased her ticket there. But the respondents also have a place of business in Edinburgh, which the pursuer contended was sufficient to confer jurisdiction on the Scottish courts at common law. She based her claim on article 19 of the Convention under which the carrier is liable for damage occasioned by delay and, alternatively, at common law for breach of an implied condition of the contract that the respondents would take reasonable care for her safety. When the case came before the Lord Ordinary, Lord Marnoch, for debate on the procedure roll he was invited to dismiss the action on various grounds. One of these was that the Scottish courts had no jurisdiction, having regard to article 28 of the Convention. After a careful review of the wording of that article and of various authorities which were cited to him from the United States of America, France and Nigeria, he held that the Scottish courts did have jurisdiction and no appeal has been taken against his decision on this point. He also held that the pursuer's case for damage occasioned by delay under article 19 of the Convention was irrelevant, and that the Convention excluded recourse to any common law remedy by a passenger who suffered injury in the course of or arising out of an international flight. On 20 December 1993 he repelled the respondents'

plea in law to the jurisdiction of the Court of Session, but he sustained their second and third pleas in law and dismissed the action as irrelevant, 1996 S.L.T. 529. The pursuer reclaimed on the single question as to whether her claim at common law had been excluded by the Convention. On 28 April 1995 an Extra Division (Lord Allanbridge, Lord Mayfield and Lord Clyde), who had the advantage of the judgment of the Court of Appeal in the English action which supported the view which had been taken by Lord Marnoch, refused her reclaiming motion: 1996 S.L.T. 529, 538-547. The pursuer has now appealed against this decision to your Lordships' House.

Miss Kiran Sidhu, Miss Harjinder Sidhu and Mr. Ravinder Sidhu, to whom I shall refer as "the plaintiffs," raised their action in the Brentford County Court. In their particulars of claim they alleged that the loss and damage which they had suffered was caused by the respondent's negligence. Their proceedings were issued on 30 July 1993, which was outside the two year time limit allowed by article 29 of the Convention but inside the three year time limit which was otherwise applicable. No claim was made by them under any of the provisions of the Convention. The respondents applied for an order that their action be dismissed as it was time barred by article 29. When their application came before Judge Marcus Edwards they also submitted that the Convention provided the exclusive remedy in respect of claims for damages arising out of international carriage by air of persons and baggage for reward. On 28 February 1994 the judge, who was referred to Lord Marnoch's decision in the pursuer's case, held for the same reasons as those given by Lord Marnoch that the plaintiffs had no rights save under the Convention. He also held that their right to damages, if any, was extinguished by article 29 of the Convention two years after 2 August 1990, and he dismissed their claims. On 27 January 1995 the Court of Appeal (Leggatt, Swinton Thomas and Otton L.JJ.) (unreported), Court of Appeal (Civil Division) Transcript No. of 1995, dismissed the plaintiffs' appeal against the order which had been made by Judge Marcus Edwards. The plaintiffs'

appeal to this House against the order made by the Court of Appeal was heard together with the pursuer's appeal against the interlocutor of the Extra Division of the Court of Session.

THE FACTS

The pursuer and the plaintiffs were all fare paying passengers on the same flight, BA.149, which left London Heathrow for Kuala Lumpur at about 6.15 p.m. on 1 August 1990. The flight was scheduled to travel to Kuala Lumpur by way of Kuwait and Madras. It was due to arrive at Kuwait in the early hours of the following day, 2 August 1990. According to the pusuer's pleadings in the Scottish action, relations between Iraq and Kuwait had been deteriorating for some days prior to the departure of the flight from Heathrow. She avers that the respondents knew or ought to have known that the passengers would be at severe risk if the aircraft were to land in Kuwait after hostilities had been commenced against Kuwait by Iraq. The same point is made by the plaintiffs in their particulars of claim, where they refer to the respondents' negligence in landing their aeroplane in Kuwait when they knew or ought to have known of the hostile situation between Iraq and Kuwait and the possibility that war might break out and Kuwait be invaded by Iraq. In the event the invasion of Kuwait by Iraq began at about 11.15 p.m. on 1 August 1990. About four hours later, at about 3.00 a.m. on 2 August 1990, the respondents' aircraft landed at Kuwait airport for refuelling. The passengers disembarked into the transit lounge at the airport terminal. While they were in the terminal the airport was attacked by Iraqi aircraft and taken over by Iraqi soldiers. The airport was closed, and the passengers and crew of flight BA.149 were detained by the Iraqis and later removed to Baghdad.

The pusuer avers that she was detained by Iraqi forces for a period of about a month. She claims to have suffered psychological injury due to the stress resulting from her captivity and the pain of separation from her family. She also claims that she was off work on a number of occasions as a result of the psychological consequences. She claims damages of

£100,000 on the ground that the respondents were in breach of an implied condition of her contract with them that they would take reasonable care for the safety of their passengers, in respect that they allowed their aircraft to land at Kuwait when they knew or ought to have known that the passengers were exposed to risk due to the invasion. Her alternative claim for damages caused by delay under article 19 of the Convention was, as I have said, held by Lord Marnoch to be irrelevant and no further issue arises on that point. She made no claim against the respondents under article 17 of the Convention.

The plaintiffs state that they were detained by the Iraqi forces until about 21 August 1990. In their particulars of injuries they allege that they suffered physical and psychological injuries. These included mental injury comprising stress and anxiety and possible permanent psychological damage as a result, and bodily injury comprising loss of weight, eczema and excessive menstrual bleeding. They also claim for loss of baggage amounting to £2,562.93 as special damages. Their action has been based entirely on negligence at common law. The negligence relied on in their particulars falls under three heads: landing their aircraft in Kuwait when the respondents knew or ought to have known of the hostile situation between Kuwait and Iraq and the possibility that war might break out and Kuwait be invaded; flying their aircraft into a war zone or war situation; and failing to divert their aircraft to a safer airport for refuelling when they knew or ought to have known that Kuwait airport was at risk of being attacked or invaded. They make no claim against the respondents under article 17 of the Convention.

THE ISSUE

Although there are some differences of detail between the two actions—the pursuer claims only for psychological injury, while the plaintiffs claim also for bodily injury and loss of baggage, and the pursuer's claim is for breach of contract while the plaintiffs' claim is in negligence—the issue of law which arises in both of these appeals is the same. It is whether

the Warsaw Convention as amended at The Hague, 1955 provides the exclusive cause of action and remedy in respect of claims for loss, injury and damage sustained in the course of, or arising out of, international carriage by air. If the answer to that question is in the affirmative, it is accepted that the claims which have been brought in each case for damages at common law for personal injury must be dismissed. It is not disputed that the plaintiffs' claim for loss of baggage must be dismissed also, on the additional ground that it was brought outwith the period of two years referred to in article 29 of the Convention after which the right to damages under the Convention is extinguished. It is common ground, for reasons to which I shall return later, that neither the pursuer nor the plaintiffs have any claim against the respondents under article 17 of the Convention in respect of their personal injuries.

THE PROVISIONS OF THE CONVENTION

I shall have something to say later about the background to the Convention. At this stage it is necessary to identify the statutory provisions which are relevant to this case. These are to be found in the Carriage by Air Act 1961, by which effect was given to the Convention concerning international carriage by air known as "The Warsaw Convention as Amended at The Hague, 1955," so that it might have the force of law in the United Kingdom in relation to any carriage by air to which the Convention applied, and the rules contained in the Convention were enabled to be applied, with or without modification, in other cases and in particular to non-international carriage by air not governed by the Convention. Force of law to the Convention in regard to international carriage by air is given by section 1(1) of the Act read together with Schedule 1, in which the provisions of the Convention are set out. Part I of the Schedule sets out the English text of the Convention, and Part II sets out the French text. Section 1(2) provides that, if there is an inconsistency between the text in English and Part I of Schedule 1 and the text in French in Part II of that Schedule, the text in French shall prevail.

The headnote to the English text in Part I of Schedule 1 describes the Convention as being "for the Unification of Certain Rules relating to International Carriage by Air." There then follow five chapters, headed respectively Chapter I—"Scope—Definitions;" Chapter II—"Documents of Carriage;" Chapter III—"Liability of the Carrier;" Chapter IV—"Provisions Relating to Combined Carriage;" and Chapter V—"General and Final Provisions."

In Chapter I, article 1(1) is in these terms:

> "(1) This Convention applies to all international carriage of persons, baggage or cargo performed by aircraft for reward. It applies equally to gratuitous carriage by aircraft performed by an air transport undertaking."

Article 1(2) of this chapter contains a definition of the expression "international carriage" which need not be quoted, as it is common ground that the present case is concerned with international carriage by air because the place of departure and the place of destination were both situated within the territories of High Contracting Parties.

Among the documents of carriage for which rules are provided by Chapter II is the passenger ticket. Article 3(1) of section 1 of this chapter is in these terms:

> "(1) In respect of the carriage of passengers a ticket shall be delivered containing:
>
> (a) an indication of the places of departure and destination;
>
> (b) if the places of departure and destination are within the territory of a single High Contracting Party, one or more agreed stopping places being within the territory of another State, an indication of at least one such stopping place;
>
> (c) a notice to the effect that, if the passenger's journey involves an ultimate destination or stop in a country other than the country of departure, the Warsaw Convention may be applicable and that the Convention governs and in most cases limits the liability of carriers for

death or personal injury and in respect of loss of or damage to baggage."

The only other chapter which contains provisions relevant to this case is Chapter III, which is headed "Liability of the Carrier." The articles comprised in this chapter are those numbered from 17 to 30, of which the following is a brief summary. Article 17 is concerned with the carrier's liability for death or injury suffered by a passenger. Article 18 is concerned with the carrier's liability for destruction or loss of or damage to registered baggage or cargo. Article 19 provides that the carrier is liable for damage occasioned by delay in the carriage by air of passengers, baggage or cargo. These provisions must be read together with article 24, which provides that, in the cases covered by these articles, any action for damages, however founded, can only be brought subject to the conditions and limits set out in the Convention. Article 20 provides: "The carrier is not liable if he proves that he and his servants or agents have taken all necessary measures to avoid the damage or that it was impossible for him or them to take such measures." Article 21 deals with cases where the damage was caused or contributed to by the injured person's negligence. Article 22 makes provision for the limitation of the liability of the carrier for each passenger and for registered baggage and cargo, and article 23 provides: "Any provision tending to relieve the carrier of liability or to fix a lower limit than that which is laid down by the Convention shall be null and void. . . ." Article 25 provides that these limits of liability shall not apply if the damage results from an act or omission of the carrier, his servants or agents done with intent to cause damage or recklessly. Article 25, 25A, 26 and 27 contain various ancillary provisions. Article 28, which deals with jurisdiction, restricts the places where an action for damages may be brought, and provides that "questions of procedure shall be governed by the law of the court seised of the case." Article 29 provides that the right to damages shall be extinguished if the action is not brought within two years.

Lastly, article 30 deals with the case where the carriage is to be performed by various successive carriers.

As I shall require to examine the wording of articles 17, 18, 23 and 24 more closely at a later stage, it is convenient now to set out the full terms of these articles. They are as follows:

Article 17:

"The carrier is liable for damage sustained in the event of the death or wounding of a passenger or any other bodily injury suffered by a passenger, if the accident which caused the damage so sustained took place on board the aircraft or in the course of any of the operations of embarking or disembarking."

Article 18:

"(1) The carrier is liable for damage sustained in the event of the destruction or loss of, or of damage to, any registered baggage or any cargo, if the occurrence which caused the damage so sustained took place during the carriage by air.

(2) The carriage by air within the meaning of the preceding paragraph comprises the period during which the baggage or cargo is in charge of the carrier, whether in an aerodrome or on board an aircraft, or, in the case of a landing outside an aerodrome, in any place whatsoever.

(3) The period of the carriage by air does not extend to any carriage by land, by sea or by river performed outside an aerodrome. If, however, such a carriage takes place in the performance of a contract for carriage by air, for the purpose of loading, delivery or transshipment, any damage is presumed, subject to proof to the contrary, to have been the result of an event which took place during the carriage by air."

Article 23:

"(1) Any provision tending to relieve the carrier of liability or to fix a lower limit than that which is laid down in this Convention shall be null and void, but the nullity

of any such provision does not involve the nullity of the whole contract, which shall remain subject to the provisions of this Convention.

(2) Paragraph (1) of this article shall not apply to provisions governing loss or damage resulting from the inherent defect, quality or vice of the cargo carried."

Article 24:

"(1) In the cases covered by articles 18 and 19 any action for damages, however founded, can only be brought subject to the conditions and limits set out in this Convention.

(2) In the cases covered by article 17 the provisions of the preceding paragraph also apply, without prejudice to the questions as to who are the persons who have the right to bring suit and what are their respective rights."

THE COMPETING ARGUMENTS

The issue between the parties is confined to a single but important point which depends for its answer on the interpretation of the Convention. Much of the background is common ground. As both cases are being dealt with on a preliminary issue of law, the facts have not been investigated. The respondents made it clear that they were not to be taken as admitting that all the allegations which have been made against them are true. But they were content that the issue of law should be dealt with on the pursuer's pleadings in the Scottish action and on the particulars of claim in the English action. For their part the pursuer and the plaintiffs accept that their claims against the respondents arise out of international carriage by air. Their apprehension by the Iraqis took place in the terminal at Kuwait, but they accept that they were still in the course of international carriage by air at that point because they were still in transit to their ultimate destination in Malaysia. The breaches of duty which they allege all relate to decisions taken while the aircraft was in the air between London and Kuwait. It is, however, also common ground

between the parties that neither the pursuer nor the plaintiffs have a claim against the respondents under article 17 of the Convention.

I do not think that it is necessary to explore the reasons why the view has been taken that article 17 does not provide a remedy in this case. It is sufficient to say that two particular reasons were given for this view in the course of the hearing before the Inner House in the Court of Session. First, it was said that no "accident" causing the damage took place on board the aircraft. Secondly, it was said that the injury sustained by the pursuer—the stress resulting from her captivity and the pain of separation from her family, absence from work and loss of income due to the psychological consequences of the captivity—did not fall within the scope of "bodily injury" for the purposes of article 17. In the English action the plaintiffs conceded in the Court of Appeal that no accident causing damage took place on board the aircraft or in the course of disembarkation. In their case bodily injury is alleged, but it was submitted on their behalf that liability for damage to the person under article 17 only arises in the event of any bodily injury suffered by a passenger and that psychological damage, which was the principal basis for their claim, probably did not come within that category. It was suggested to your Lordships in the course of the argument that the phrase "bodily injury" in article 17 ought now to be construed as including psychological damage, especially if it were shown to have a physiological basis by medical evidence. But that point does not arise for decision in this case and it was not fully argued. I prefer to express no opinion upon it.

It should be recorded also that all parties were agreed that, if a passenger had a claim under article 17 against the carrier, there was no concurrent common law remedy. It is common ground therefore that a passenger who has a claim for bodily injury caused by an accident which took place on board the aircraft, or in the course of any of the operations of embarking or disembarking, cannot maintain a separate claim at common law for any loss, injury or damage not covered by article

17 of the Convention. That seems to follow inevitably from the provisions of article 24(2), which declares that in the cases covered by article 17 any action of damages, however founded, can only be brought subject to the conditions and limits set by the Convention.

So the stark issue which is before us in this appeal is whether a passenger who has sustained damage in the course of international carriage by air due to the fault of the carrier, but who has no claim against the carrier under article 17 of the Convention, is left without a remedy.

THE APPROACH TO CONSTRUCTION

I now turn to the material which we were invited to consider in reaching our decision as to how we should decide this issue. Some of this material is plainly relevant, some of it plainly is not and some of it will require consideration and analysis in order to decide whether it is of any assistance to us in this case. The following catalogue provides the starting point.

(i) THE CARRIAGE BY AIR ACT 1961

Mr. Webb took us through various provisions in the statute which he said could be relied on as indicating that the intention was that the Convention should provide the exclusive remedy. Similar arguments were considered in the courts below. For my part I do not think that the wording of the statute can assist us one way or the other. What we are concerned with in this case is the meaning to be given to the Convention. This must depend upon the wording and structure of the Convention itself. All that need to be taken from the Act for present purposes is that, in terms of section 1(1), the Convention as set out in Schedule 1 to the Act has the force of law in the United Kingdom in relation to any carriage by air to which the Convention applies; and that, in terms of section 1(2), if there is any inconsistency between the text in English in Part I of Schedule 1 and the text in French in Part II of that Schedule, the text in French shall prevail.

(ii) THE ENGLISH TEXT OF THE CONVENTION

This plainly is the primary source to which we must turn for a solution to the point raised in this case. It may be convenient, however, to record at this point that all parties were agreed, as they were in the courts below, that the Convention should receive a purposive construction. This point was fully explored in Fothergill v. Monarch Airlines Ltd. [1981] A.C. 251, where the question at issue arose under article 26(2) of the Convention. It does not need to be elaborated upon in this case. It is now well established that a purposive approach should be taken to the interpretation of international conventions which have the force of law in this country. As Lord Diplock said, at p. 279, one must give a purposive construction to the Convention looked at as a whole. The observations of Greene L.J. in Grein v. Imperial Airways Ltd. [1937] 1 K.B. 50, 74-76, to which I shall return later, are to the same effect.

(iii) THE TRAVAUX PRÉPARATOIRES

Here again the parties were in agreement. Reference was made in the courts below to the negotiating history of the Convention, and in particular to the minutes of the International Conference on Private Aeronautical Law at Warsaw from 4 to 12 October 1929. We also were referred to various passages from these minutes in the course of the argument. The question whether it is legitimate to resort to material of this kind was discussed in Fothergill v. Monarch Airlines Ltd., and it is unnecessary to go over this ground again. It is sufficient to say that cautious use may be made of this material, the availability to the public of which is not in doubt. But it will only be helpful if, after proper analysis, it clearly points to a definite intention on the part of the delegates as to how the point at issue should be resolved.

(iv) DECISIONS BY THE COURTS IN THE UNITED KINGDOM

The only cases to which we were referred as having any possible bearing on the issue which we have to decide in this case were Grein v. Imperial Airways Ltd. [1937] 1 K.B. 50, 74-76 and Gatewhite v. Iberia Lineas Aereas de España S.A. [1990] 1 Q.B. 326. The issue which was raised in Grein v. Imperial Airways Ltd. was a different one from that which arises here. It was whether a passenger who met his death while travelling by aeroplane on a return ticket between London and Antwerp—Belgium not being a High Contracting Party—was engaged on "international carriage" within the meaning of the Convention. But Greene L.J., at pp. 74-76, made some observations about the approach to be taken to the construction of the Convention which are helpful in the present case. The Gatewhite case arose out of a contract for the carriage of goods by air. The question was whether the owner of goods not named as the consignor or consignee on the air waybill was entitled to sue the carrier for damages to the goods while in transit. I shall return to this case later in order to see what help it can give to us in the present case.

(v) DECISIONS BY FOREIGN COURTS

Much of the discussion in the Court of Session, both in the Outer House before the Lord Ordinary, Lord Marnoch, and in the Extra Division, was taken up with an examination of decisions of various courts in the United States. We were referred to the cases mentioned in the courts below and to several other cases from the same source. We were also referred to a recent decision in the Tribunal de Grande Instance de Paris arising out of the same incident as the claims which are being made in the present case. Parties were agreed that we might have regard to this material for such assistance as it might give. Clearly, much must depend upon the status of each court and of the extent to which the point of issue has been subjected to careful analysis. Material of this kind, where it is found to be of the appropriate standing and quality, may be of some help in pointing towards an interpretation of the Con-

vention which has received general acceptance in other countries. But the value of the material will be reduced if the decisions conflict with each other or if no clear line of approach appears from them after they have been analysed.

(vi) EUROPEAN CONVENTION OF HUMAN RIGHTS

Mr. Clive Nicholls for the plaintiffs submitted that it would be inconsistent with the obligations of the United Kingdom under various articles of the European Convention of Human Rights if a construction were to be placed on article 17 of the Warsaw Convention which excluded the claim which they were seeking to make in this case. Your Lordships had no hesitation in rejecting that argument. The provisions of the European Convention have no bearing on the interpretation of international conventions such as the Warsaw Convention on carriage by air—and there are many other examples—which are concerned with commerce between countries and which seek, by a process of compromise, to achieve uniformity across international frontiers in the application of trade law.

It must also be observed that, while some parties to the Warsaw Convention are parties to the European Convention of Human Rights, some—notably the United States of America—are not. We cannot assume that the principles expressed in the European Convention are common to all those countries who are parties to the Warsaw Convention. Thus we would risk introducing an element of distortion into the debate, in conflict with the broad aim of uniformity of interpretation between states, if we were to rely on the European Convention as an aid to the construction of the Warsaw Convention in the present case. In T. v. Secretary of State for the Home Department [1996] 2 W.L.R. 766, 793A, Lord Lloyd of Berwick said that in a case concerning an international convention it was obviously desirable that decisions in different jurisdictions should, so far as possible, be kept in line with each other. As Dicey & Morris, The Conflict of Laws, 12th ed. (1993), p. 9, observe:

> "The purpose of an international convention is to harmonise the laws of all contracting states on the particu-

lar topic dealt with by the Convention. It is therefore very important that the interpretation of the Convention should be the same, so far as possible, in all contracting states."

(vii) ANALYSIS OF THIS MATERIAL

It follows from what I have just said that no analysis is required of the 1961 Act or of the European Convention of Human Rights. I turn therefore immediately to the Convention itself, which is the primary source to which we must look for a solution to the question we have to decide.

(a) THE ENGLISH TEXT OF THE CONVENTION

I can confine myself to the English text, because all parties were agreed that, except in one respect with which I can deal briefly, there was for present purposes no material difference between it and the French text.

The Convention describes itself as a "Convention for the Unification of Certain Rules relating to International Carriage by Air." The phrase "Unification of Certain Rules" tells us two things. The first, the aim of the Convention is to unify the rules to which it applies. If this aim is to be achieved, exceptions to these rules should not be permitted, except where the Convention itself provides for them. Second, the Convention is concerned with certain rules only, not with all the rules relating to international carriage by air. It does not purport to provide a code which is comprehensive of all the issues that may arise. It is a partial harmonisation, directed to the particular issues with which it deals.

These issues are identified in the principal chapter headings, which are those to Chapters II, III and IV—"Documents of Carriage," "Liability of the Carrier" and "Provisions Relating to Combined Carriage." Nothing is said in this Convention about the liability of passengers to the carrier, for example. Nor is anything said about the carrier's obligations of insurance, and in particular about compulsory insurance against third party risks. It is clear from the content and struc-

ture of the Convention that it is a partial harmonisation only of the rules relating to international carriage by air. That is sufficient to give content to the phrase "Certain Rules." I do not find in that phrase an indication that, in regard to the issues with which the Convention does purport to deal, its provisions were intended to be other than comprehensive.

The principal search for indications of an intention one way or the other about exclusivity of provision in regard to the carrier's liability must be conducted within the provisions of Chapter III. But before I come to this chapter there are two provisions in the earlier chapters which are worth noting as being of some value. First, Article 1(1) states that the Convention applies to "all international carriage of persons, baggage or cargo performed by aircraft for reward." The word "all" is important, simply because it is so all-embracing. It indicates that the framers of the Convention were looking to solutions, no doubt by a process of adjustment and compromise, which could be regarded as acceptable for universal application in all cases. The other provision is article 3(1)(c), which requires that the ticket to be delivered to the passenger must contain among other things

> "a notice to the effect that, if the passenger's journey involves an ultimate destination or stop in a country other than the country of departure, the Warsaw Convention may be applicable and that the Convention governs and in most cases limits the liability of carriers for death or personal injury and in respect of loss of or damage to baggage."

This provision was relied on to some extent by Lord Clyde, 1996 S.L.T. 529, 545J. He said that the words used here would seem quite absoluteb [sic]—the qualification that the limits apply "in most cases" presumably covering such exceptions as are contained in article 25, which deals with cases where the carrier, his servants or agents have caused intentional damage or acted recklessly. It is here that the French text may be important. The relevant part of the provision is stated there in these terms:

> "(c) . . . leur transport peut être régi par la Convention de Varsovie qui, en général, limite la responsabilité du transporteur en cas de mort ou de lésion corporelle, ainsi qu'en cas de perte ou d'avarie des bagages."

The word "governs" which is to be found in the English text is an accurate translation of the word "régi" in the French text. But the English version does not follow the French wording precisely—the phrase "peut être régi" is not, as such, reproduced. So on balance I am inclined not to attach significance to this provision, which in any event is dealing only with the wording of a notice on the passenger's ticket and not with the substance of the rules about the carrier's liability.

Turning to Chapter III itself, the chapter heading expresses its subject matter in the words "Liability of the Carrier." In contrast to the title to the Convention itself, which uses the expression "Certain Rules," we find here a phrase which is unqualified. My understanding of the purpose of this chapter therefore, from what we have seen so far, is that it is designed to set out all the rules relating to the liability of the carrier which are to be applicable to all international carriage of persons, baggage or cargo by air to which the Convention applies.

Chapter III begins by setting out the three primary rules. These are the rules relating to the carriage of passengers, to the carriage of registered baggage or cargo and to delay in the carriage by air of passengers, baggage or cargo. While article 19 is unqualified—it states simply that the carrier is liable for damage occasioned by delay in the carriage by air—the other two articles are qualified, because the liability which they create applies only in the events described and only if certain other conditions are satisfied: see articles 20 and 21. This, however, is not in itself a reason for regarding these provisions as non-exclusive remedies. One has to look further into the details of the chapter in order to grasp the whole context in which these carefully defined liabilities have been devised.

Articles 20 and 21 enable the carrier to avoid liability in whole or in part. They contain nothing of significance for pre-

sent purposes. Article 22 however is important, because it limits the liability of the carrier. It does so in terms which enable the limitation of liability to be applied generally to all cases where the carrier is liable in the carriage of persons and of registered baggage and cargo. Article 22(1) begins simply with the words "In the carriage of persons." Article 22(2)(a) begins with the words "In the carriage of registered baggage and of cargo." The intention which emerges from these words is that, unless he agrees otherwise by special contract—for which provision is made elsewhere in the article—the carrier can be assured that his liability to each passenger and for each package will not exceed the sums stated in the article. This has obvious implications for insurance by the carrier and for the cost of his undertaking as a whole. Article 22(4) makes provision for the award, in addition, of the whole or part of the costs of the litigation. But this is subject to the ability of the carrier to limit his liability for costs by an offer in writing to the plaintiff. The effect of these rules would, I think, be severely distorted if they could not be applied generally to all cases in which a claim is made against the carrier.

Articles 23 and 24 also are provisions which seem to have been designed to apply generally, and to indicate that the possibility of exceptions to the rules laid down in Chapter III was not being contemplated. Article 23 states that any provision tending to relieve the carrier of liability or to fix a lower limit than that which is laid down in the Convention shall be null and void. It then goes on to state that the nullity of any such provision does not involve the nullity of the whole contract, which is to remain subject to the provisions of the Convention. The generality of effect is to be found in the opening words, since the article applies to "any provision" which tends to relieve the carrier of liability or to fix a lower limit than that laid down by the Convention. I think that the purpose of this provision is clear. It is to protect the passenger or other person dealing with the carrier against provisions of the kind which it describes. Contracting out of liability in contracts of carriage is, of course, now widely regulated by statute. But no doubt in the early 1920's, when what

became the Warsaw Convention was being negotiated, carriers engaged in international carriage by air were free to contract on whatever terms they cared to select, controlled only by the demands of the marketplace in which they were operating. To surrender freedom of contract on this issue was an important concession on the part of carriers, which made sense only in the context of the entire set of rules by which their conduct was to be regulated.

The counterpart of what was plainly a compromise is to be found in the following article, article 24. This Article provides that in the cases covered by articles 18 and 19 and by article 17 respectively—these cases are dealt with separately in two different paragraphs—"any action of damages, however founded, can only be brought subject to the conditions and limits set" by the Convention. It should be noted in passing that paragraph (2) of the article states that this rule is to apply to the cases covered by article 17 "without prejudice to the questions as to who are the persons who have the right to bring suit and what are their respective rights." As Professor Rene H Mankiewicz has pointed out in his article, "The Judicial Diversification of Uniform Private Law Conventions—The Warsaw Convention's Days in Court" (1972) 21 I.C.L.Q. 718, 741 no one could expect states to be prepared to amend their laws relating to these questions, which are basic to the laws of tort and contract and therefore of a wide reaching significance, for the sole purpose of unifying and accommodating all matters relating to the law of the air carrier's liability.

The structure of these two provisions seems to me therefore to be this. On the one hand the carrier surrenders his freedom to exclude or to limit his liability. On the other hand the passenger or other party to the contract is restricted in the claims which he can bring in an action of damages by the conditions and limits set out in the Convention. The idea that an action of damages may be brought by a passenger against the carrier outside the Convention in the cases covered by article 17—which is the issue in the present case—seems to be entirely contrary to the system which these two articles were designed to create.

The reference in the opening words of article 24(2) to "the cases covered by articles 17" does, of course, invite the question whether article 17 was intended to cover only those cases for which the carrier is liable in damages under that article. The answer to that question may indeed be said to lie at the heart of this case. In my opinion the answer to it is to be found not by an exact analysis of the particular words used but by a consideration of the whole purpose of the article. In its context the purpose seems to me to be to prescribe the circumstances—that is to say, the only circumstances—in which a carrier will be liable in damages to the passenger for claims arising out of his international carriage by air.

The phrase "the cases covered by article 17" extends therefore to all claims made by the passenger against the carrier arising out of international carriage by air, other than claims for damage to his registered baggage which must be dealt with under article 18 and claims for delay which must be dealt with under article 19. The words "however founded" which appear in article 24(1) and are applied to passenger's claims by article 24(2) support this approach. The intention seems to be to provide a secure regime, within which the restriction on the carrier's freedom of contract is to operate. Benefits are given to the passenger in return, but only in clearly defined circumstances to which the limits of liability set out by the Convention are to apply. To permit exceptions, whereby a passenger could sue outwith the Convention for losses sustained in the course of international carriage by air, would distort the whole system, even in cases for which the Convention did not create any liability on the part of the carrier. Thus the purpose is to ensure that, in all questions relating to the carrier's liability, it is the provisions of the Convention which apply and that the passenger does not have access to any other remedies, whether under the common law or otherwise, which may be available within the particular country where he chooses to raise his action. The carrier does not need to make provision for the risk of being subjected to such remedies, because the whole matter is regulated by the Convention.

Only two other articles may be mentioned in this analysis: articles 28 and 29. These restrict the places in which "an action for damages" must be brought, and provide that "the right to damages" shall be extinguished if an action is not brought within two years. Here again it seems that a balance has been struck in the interests of uniformity of treatment and of certainty. I see no sign in the generality with which these provisions have been expressed of a recognition that there may be some actions of damages arising from the international carriage of passengers by air which are not subject to these rules. It would be largely destructive of the system which this chapter seems to have been designed to lay down if a passenger were to be able, for example, to maintain a claim of damages for non-bodily injury, for loss of or damage to the personal possessions which he had with him inside the aircraft or for economic loss, outside the conditions and limits set by the Convention while maintaining a claim under the Convention for the bodily injury. No doubt it was for this reason that it was conceded that, if he had a claim under article 17, the passenger would not be able to maintain any other claim against the carrier arising out of the same incident. But it seems to me that, by parity of reasoning, the same approach must be taken to cases arising out of international carriage by air where he has no claim under article 17 at all.

(b) THE TRAVAUX PRÉPARATOIRES

We were shown a copy, in the English translation, of the Minutes of the Second International Conference on Private Aeronautical Law, 4 to 12 October 1929 at Warsaw. Attached to these minutes are copies of the documents submitted to the conference. These comprise (a) a preliminary draft of the Convention prepared by the International Technical Committee of Legal Aeronautical Experts (C.I.T.E.J.A.), together with a report on the preliminary draft by Mr. Henri De Vos in name of the committee and (b) proposals of amendments submitted to the Warsaw Conference by a preparatory committee and by various delegations to the conference. The first conference had been held in Paris in 1925, so the material

which was before the conference in Warsaw in 1929 was the product of four years work by the committee.

I do not think that it would be profitable for me to attempt to summarise this material. There are various passages in the minutes where the delegates are recorded as expressing views about the object of the Convention. For example, Sir Alfred Dennis on behalf of Great Britain, said at p. 85, that the object of the Convention was to ensure uniformity of law, and, at p. 213, he said that what became article 24(1) touched the very substance of the Convention because it excluded resort to the common law. Similar observations are attributed to the Soviet delegate, Mr. Sabanin, at p. 40 and to the French delegate, Mr. Ripert, at p. 47. At p. 49, Mr. De Vos referred to various questions relating to the carrier's liability as being connected to each other, as they constituted "the parts of a whole which is the system of liability." But these are mere straws in the wind which emerged during several days of detailed discussion to which many delegates contributed. I do not find a sufficiently clear and consistent expression of views here about the objects of the Convention on the point which is at issue in this case to enable me to say that the answer to the problem is to be found in the minutes. The most that can be said is that I have not found anything in these minutes or in the accompanying material which contradicts the impression which I have already formed on reading the Convention.

There is one particular point arising from the minutes however on which I think I should comment. It relates to the phrase "Certain Rules" in the title to the Convention. The title in the preliminary draft did not contain this phrase. In their proposals, however, the delegates from Czechoslovakia had proposed an amendment to Chapter IV of the draft to the effect that there should be inserted in it an article which would have provided that, in the absence of a stipulation in the Convention, the provisions of laws and national rules relating to carriage in each state should be applicable. The effect of that amendment, if introduced, would have been to enable the common law to apply when liability could not be established under the Convention. There was a brief discus-

sion of this amendment during the sixth session of the conference on 9 October: see p. 176 of the minutes. When the proposal was drawn to the attention of the delegates the head of the Italian delegation, Mr. Giannini, said that, following a suggestion made by the German delegation, they were going to propose adopting as a title for the Convention the words "Convention relating to certain rules for the unification of private aeronautical law." He added that, given that this title indicated the special character of the Convention, the Czechoslovak delegation no longer insisted on its amendment. The Czechoslovak proposal was then withdrawn without further discussion. A proposal by the Yugoslav delegation that the Berne Convention should be applied for cases not provided for by the Convention was also withdrawn.

Mr. Nicholls suggested that the meaning to be given to the words "Certain Rules" in the title should reflect the text of the withdrawn Czechoslovakian amendment. In my opinion, however, the circumstances in which the Czechoslovak delegation agreed to withdraw their proposal are not sufficiently explored in the minutes to enable us to take that meaning from these words. Nor indeed is it sufficiently clear what the scope was of the amendment which that delegation had originally proposed. In an earlier discussion, noted at p. 85 of the minutes, both the British and the Soviet delegates had expressed concern at the insertion of a clause which would have opened gaps in the Convention, as its object was to ensure uniformity. It may be that all the Czechoslovak delegates were seeking to do was to insert a clause in order to clarify the position in regard to chapters of law relating to international carriage by air with which the Convention was not attempting to deal. Their agreement to the substitution of the words "Certain Rules" in the title can easily be explained if that was the only purpose which their amendment was intended to serve.

(c) DECISIONS BY THE COURTS IN THE UNITED KINGDOM

As I said earlier, the only United Kingdom cases to which we were referred were Grein v. Imperial Airways Ltd. [1937]

1 K.B. 50, 74-76, in which Greene L.J. made certain observations about the approach to construction of the Convention and Gatewhite v. Iberia Lineas Aereas de España S.A. [1990] 1 Q.B. 326, in which Gatehouse J. held that, in the absence of express provision in the Convention excluding the owner's right of action, the owner of goods damaged or lost by a carrier was entitled to sue in his own name in accordance with the lex fori and accordingly that the plaintiffs were entitled to damages to be assessed at common law.

In Grein v. Imperial Airways Ltd. Greene L.J. made observations, at pp. 74-76, about the general objects of the Convention, the desirability of an international code for air carriage, and the need to approach the Convention with a proper appreciation that it was one of the main objects of the Convention to secure the removal of various difficulties which might otherwise have arisen by means of a uniform international code. These observations are helpful as they support the approach which I have taken in my reading of the Convention. But there is nothing in the facts of the case or the particular decision arrived at which is relevant to the issue in this case.

In Gatewhite v. Iberia Lineas Aereas de España S.A. the defendants had argued that, as that was a case of international carriage of cargo by air, it was governed by the Convention and that the plaintiffs had no claim under it as only the consignor or the consignee had a right of action against the carrier. The judge rejected this argument. He said, at p. 331G that it was remarkable that nowhere did the Convention expressly exclude the right of the owner of goods to sue the carrier for damage to or loss of the goods and that the limitation of this right to consignor or consignee alone arose, if at all, by implication. Having examined various decisions from other jurisdictions which were directed to this issue he was attracted by the reasoning in Tasman Pulp & Paper Co. Ltd. v. Brambles J.B. O'Loghlen Ltd. [1981] 2 N.Z.L.R. 225. It seemed to him that, as the Convention did not expressly deal with the position by excluding the owner's right of action, although it could so easily have done so, the lex fori could fill the gap: see p. 334G.

Lord Marnoch in the Outer House of the Court of Session, 1996 S.L.T. 529, 537B was able to distinguish the Gatewhite case on the ground that it was dealing with a quite separate aspect of the Convention. Lord Clyde in the Inner-House, at p. 546E, said that the area of title to sue was one in which the Convention was not necessarily exhaustive. This decision, however, does not sit easily with the idea that the object of the Convention, in the areas with which it deals, was to provide uniformity of application internationally. As Shawcross and Beaumont, Air Law, VII (188) have observed, the rule in civil law countries is that only a party to a contract of carriage, or a principal for whom he was acting, is regarded as the appropriate plaintiff. In common law countries the proper plaintiff is the owner of the goods, whose right to sue depends on his interest in the goods, not on the fact that he may also be a party to the contract. It would seem to be more consistent with the purpose of the Convention to regard it as providing a uniform rule about who can sue for goods which are lost or damaged during carriage by air, with the result that the owner who is not a party to the contract has no right to sue in his own name.

We were not asked to review the Gatewhite case in detail however, and as the point was not fully argued I would not wish to cast further doubt on the decision which Gatehouse J. reached. It is sufficient for present purposes to say that I am not persuaded that we should apply his reasoning to the question which is before us here, which is not concerned with the question of standing or title to sue but with the question whether a person who has an undoubted title to sue under the Convention can pursue a claim outside the Convention where the Convention itself does not provide him with a remedy.

(d) DECISIONS BY THE FOREIGN COURTS

Much of the discussion in both the Outer House and the Inner House in the Court of Session was taken up with a detailed examination of various cases on this topic from the United States of America. All the judges in that court were of the view however that, in the end, no clear guidance was

available from this source to enable them to rely on this material in reaching their decision in the present case. Lord Marnoch observed, 1996 S.L.T. 529, 536C-D, that the Supreme Court had on two occasions in recent times found it either unnecessary or inappropriate to consider the question whether the Convention provided an exclusive course of action for injuries sustained during international air transportation: Air France v. Saks (1985) 470 U.S. 392; and Eastern Airlines Inc. v. Floyd (1991) 499 U.S. 530. The result of his review was that there was no clear or very consistent line of reasoning in these cases to guide him in this area of international air law. Lord Mayfield, 1996 S.L.T. 529, 544C said that it was impossible to draw any clear conclusion as to the state of U.S. law, and Lord Clyde expressed the same view, at p. 547J, having observed earlier that it was pointless and perhaps impertinent to subject all these cases to critical analysis. Lord Allanbridge was able to find support in some of the cases for the view which he had already reached on his examination of the Convention. But in the end he agreed, at p. 542L with the observations of Leggatt L.J. in Sidhu v. British Airways Plc. in the Court of Appeal that, in view of the conflicting nature of these authorities and the fact that the Supreme Court had twice refrained from addressing the present problem, it was necessary to reach a conclusion in this case without any definite aid from the United States. As Leggatt L.J. said in his judgment, it appears that the point is not settled in the United States as between circuits and even in some instances within the same circuit. From his consideration of the cases cited to him he was not prepared to say where the preponderance of current opinion lies in the United States.

I do not think that I can usefully add much to these observations. One could, of course, attempt to prepare an analysis of the various cases which were cited to us in order to show why Metz v. K.L.M. Royal Dutch Airlines, (1979) 15 Avi. 17, 843, Abramson v. Japan Airlines Co. Ltd. (1984) 739 F. 2d 130, Fischer v. Northwest Airlines, (1985) 623 F. Supp. 1064 and Walker v. Eastern Airlines, (1991) 23 Avi. 17, 904, which favour the position of the pursuer and the plaintiffs in this

case, should be rejected in the light of the contrary view expressed in Finkelstein v. Trans World Airlines Inc. (1978) 15 Avi. 17, 379 and Saloom (George) v. British Airways, (unreported), 22 February 1993, U.S. District Court, Southern District of California, Western Region. The Saloom case is of particular interest, as the claims which the court held were governed exclusively by the Convention and could not be made out on the facts arose out of the same incident as that with which we are concerned in this case. There are dicta in some other cases, notably Boehringer-Mannheim Diagnostics Inc. v. Pan American Airways Inc. (1984) 737 F. 2d 456, which support the general view that the Convention provides the sole cause of action where a passenger seeks to establish a claim against an air carrier and is the exclusive remedy. But, as Lord Clyde pointed out, 1996 S.L.T. 529, 547C, these general observations are of little value unless they are based on a clear and precise understanding of what matters are governed by the Convention. I am not confident, with great respect to the many American judges who have participated in this debate, that that has always been the case. I believe that it would be unwise to attempt to reconcile all these dicta, or to try to subject each of the various decisions to analysis in order to extract from them a view which one could be confident would be regarded as authoritative.

In any event, as Mr. Webb pointed out, the United States is only one jurisdiction among many. Although the volume of litigation in that country on aviation matters is substantial and the jurisprudence which has been developed is an important source of information on aviation law generally, views formed there cannot be assumed to be the same as those formed in other jurisdictions which are party to the Convention. Some of the cases in the United States may also be influenced by the question whether the claim for damages was properly to be litigated in the State courts rather than the Federal courts. Lord Diplock in Fothergill v. Monarch Airlines Ltd. [1981] A.C. 251, 284C drew attention to the factors on which the persuasive value of the decisions of a foreign court must depend. These include the reputation and status of the court, and the extent to which the decision is binding upon courts of

co-ordinate and inferior jurisdiction in that country. As matters have developed it will ultimately be for the Supreme Court of the United States of America to offer guidance to the American judges on this issue, and at this stage I do not think that we should attempt to enter into the difficult debate as to how the balance of view is likely to be resolved when the matter is dealt with by that court.

As for the French case to which we were referred, I think that it also must be regarded as being of no persuasive value in the present case. In Ismail A. Mohamed v. British Airways, (unreported), 8 November 1995, 65 passengers and their close relatives, who were all French nationals, claimed damages from British Airways for the consequences of the same events as those which have given rise to the claims which are before us in these appeals. The Tribunal de Grande Instance de Paris reached the view on the facts that the damages claimed were not linked with disembarkation operations as such, and that they could not be linked to those risks inherent in aerial navigation as provided by the Warsaw Convention. In these circumstances the court felt free to determine the law applicable, on the view that the consequential damages claimed were not covered by the field of application of the Convention. French law was applied, and the plaintiffs were found entitled to damages unrestricted by the limits set by article 22 of the Convention.

That, however, was a decision at first instance, and we were told that it is now under appeal. The copy of the judgment with which we have been provided, in an English translation, does not contain a close analysis of the Convention, nor is there any reference to previous decisions on the issue in the French courts or elsewhere. The reasons given do not disclose a detailed examination of the issues raised by the defence. It is reasonably clear however that the case proceeded upon a different view from that which has been taken in the present case, where it is conceded that the claims can properly be regarded as arising out of international carriage of passengers by air.

CONCLUSION

I believe that the answer to the question raised in the present case is to be found in the objects and structure of the Convention. The language used and the subject matter with which it deals demonstrate that what was sought to be achieved was a uniform international code, which could be applied by the courts of all the High Contracting Parties without reference to the rules of their own domestic law. The Convention does not purport to deal with all matters relating to contracts of international carriage by air. But in those areas with which it deals—and the liability of the carrier is one of them—the code is intended to be uniform and to be exclusive also of any resort to the rules of domestic law.

An answer to the question which leaves claimants without a remedy is not at first sight attractive. It is tempting to give way to the argument that where there is a wrong there must be a remedy. That indeed is the foundation upon which much of our own common law has been built up. The broad principles which provide the foundation for the law of delict in Scotland and of torts in the English common law have been developed upon these lines. No system of law can attempt to compensate persons for all losses in whatever circumstances. But the assumption is that, where a breach of duty has caused loss, a remedy in damages ought to be available.

Alongside these principles, however, there lies another great principle, which is that of freedom of contract. Any person is free, unless restrained by statute, to enter into a contract with, another on the basis that his liability in damages is excluded or limited if he is in breach of contract. Exclusion and limitation clauses are a common feature of commercial contracts, and contracts of carriage are no exception. It is against that background, rather than a desire to provide remedies to enable all losses to be compensated, that the Convention must be judged. It was not designed to provide remedies against the carrier to enable all losses to be compensated. It was designed instead to define those situations in which compensation was to be available. So it set out the limits of liability and the conditions under which claims to estab-

lish that liability, if disputed, were to be made. A balance was struck, in the interests of certainty and uniformity.

All the obvious cases in which the carrier ought to accept liability were provided for. But, as one of the French delegates to the Warsaw Convention, Mr. Ripert, observed (Minutes p. 73) when the definition of the period of carriage was being discussed, there are an infinite variety of cases not all of which can be put in the same formula. No doubt the domestic courts will try, as carefully as they may, to apply the wording of article 17 to the facts to enable the passenger to obtain a remedy under the Convention. But it is conceded in this case that no such remedy is available. The conclusion must be therefore that any remedy is excluded by the Convention, as the set of uniform rules does not provide for it. The domestic courts are not free to provide a remedy according to their own law, because to do this would be to undermine the Convention. It would lead to the setting alongside the Convention of an entirely different set of rules which would distort the operation of the whole scheme.

The Convention is, of course, tightly drawn on these matters. This has been done in the interests of the carrier, whose exposure to these liabilities without the freedom to contract out of them was a principal consequence of the system which it laid down. Were remedies outside the Convention to become available, it would encourage litigation in other cases to restrict its application still further in the hope of obtaining a better remedy, against which the carrier would have no protection under the contract. I am in no doubt that the Convention was designed to eliminate these difficulties. I see no escape from the conclusion that, where the Convention has not provided a remedy, no remedy is available.

For these reasons I would dismiss both appeals.